

File No.: EXP202401292

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 5, 2024, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against PALANCAMAR, S.L. with NIF B90375858 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The claimant states that on April 20, 2023, they entered into a purchase contract for a vehicle acquired from the respondent, providing their personal data without being informed about the processing of their data, as established by data protection regulations.

Along with the notification, documentation related to the purchase contract and a copy of the invoice for the vehicle acquisition is provided, specifically a model of a reservation contract for the amount of ***AMOUNT.1, a printed form that has been filled out by hand incorporating the claimant's data, specifically, name, surname, NIF, address, as well as the model of the vehicle and its license plate number.

The vehicle purchase contract is also provided, for which a standard contract purchased at a tobacco shop was used, for the amount of three euros, where again, the claimant's personal data is indicated by hand, name, surname, address, and NIF, as well as data of the vehicle subject to the sale, type of vehicle, brand, and license plate.

It is also handwritten in the document that the buyer contracts for one year of warranty. This document indicates that the total purchase amount is ***AMOUNT.2, but that at the time of purchase ***AMOUNT.3 is provided, having paid one thousand euros in the reservation contract.

Both the reservation contract and the aforementioned purchase contract have been signed by both parties, claimant and respondent.

Additionally, the invoice for the vehicle purchase is provided, which, like the previous documents, includes the name and surname of the claimant, NIF, address, and vehicle data, model, license plate, and purchase amount.

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None of the documents provided contains any informative clause regarding personal data protection.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was done on January 24, 2024, via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 2, 2024, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail on February 6, 2024, which was returned as “absent in delivery”; the forwarding was reiterated by the same means on March 6, 2024, which was again returned as “absent in delivery.”

THIRD: On April 5, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the

claimant was admitted for processing.

FOURTH: According to the report of June 17, 2024, obtained from the AXESOR tool, the entity PALANCAMAR, S.L. is a microenterprise in the vehicle sales and repair sector, (...) established in 2018, with estimated sales amounting to 977,771 euros.

FIFTH: On October 25, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

Specifically, the initiation agreement was notified by publishing the corresponding announcement in the Official State Gazette on November 28, 2024, in the terms indicated by Article 44 of the LPACAP, after attempts at postal notification were unsuccessful in accordance with Article 432 of Royal Decree 203/2021, of March 30, which approves the Regulation on the operation and functioning of the Public Sector by electronic means. Thus, according to the postal receipt in the file, the document was "returned to origin due to excess" for not having been collected at the office after notification in the mailbox.

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It is recorded that there were delivery attempts resulting in "absent," the first on November 6, 2024, at 12:25 hours and the second on November 8, 2024, at 20:19 hours.

After the deadline granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision that was mentioned in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the claimed party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: On April 20, 2023, PALANCAMAR, S.L (the claimed party) and the claiming party entered into a contract for the sale of a vehicle valued at ***AMOUNT.2. Prior to the sale, on April 15, 2023, they had signed a deposit contract, with the claimed party providing a deposit of ***AMOUNT.1.

SECOND: Both in the deposit contract, as well as in the vehicle sale contract and in the invoice issued by the claimed party, personal data of the claiming party is included, and processing of this data is carried out. Specifically: name, surname, ID number, address, and handwritten signature.

THIRD: Neither in the sale contract, nor in the invoice provided to the claiming party after the acquisition of the vehicle, nor in the deposit contract is the information required by Article 13 of the GDPR included, which must be provided by the data controller at the time of obtaining personal data.

FOURTH: The data controller is PALANCAMAR, S.L. with NIF B90375858, a company whose activity consists of the sale of automobiles and motorcycles.

LEGAL GROUNDS

I

Competence
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By virtue of the powers granted by Article 58.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation, hereinafter GDPR), recognized to each supervisory authority, and as established in Articles 47, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate this procedure.

Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation, hereinafter GDPR), under the heading "Definitions," provides that:

"For the purposes of this Regulation, the following definitions shall apply:

1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;"

Furthermore, in its paragraph 7, it establishes that:

"'data controller' or 'controller': the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data;"

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means of processing; (...)

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that the responding party carries out, among other processes, the collection and storage of personal data of individuals such as name, surname, ID number, postal address, among others.

The responding party conducts this activity in its capacity as the data controller, as it is the one who determines the means and purposes of the activity in accordance with Article 4.7 of the GDPR.

III

Obligation breached Article 13 of the GDPR

Article 13 of the GDPR, which sets out the information that must be provided to the data subject at the time of data collection, states:

"1. When personal data relating to a data subject is obtained, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the fact that they have been provided.

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2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any relevant additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

For its part, Article 11 of the LOPDGDD states the following:

“1. When personal data is obtained from the affected party, the data controller may comply with the information duty established in Article 13 of Regulation (EU) 2016/679 by providing the affected party with the basic information to the

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referring to the following section and indicating an electronic address or another means that allows for easy and immediate access to the remaining information.

2. The basic information referred to in the previous section must contain, at a minimum:

- a) The identity of the data controller and, if applicable, their representative.
- b) The purpose of the processing.
- c) The possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. If the data obtained from the data subject is to be processed for profiling purposes, the basic information will also include this circumstance. In this case, the data subject must be informed of their right to object to the adoption of automated individual decisions that produce legal effects concerning them or significantly affect them in a similar manner, when this right applies in accordance with the provisions of Article 22 of Regulation (EU) 2016/679.”

In this case, a complaint is filed against the complained entity, because on April 20, 2023, it entered into a sales contract for a vehicle with the complaining party, providing for this purpose their personal data, without the complained party informing them about the processing of their data, despite the requirement of data protection regulations.

Neither in the contract nor in the invoice provided is there any reference to the aspects indicated in Article 13 of the GDPR, as noted in legal basis III, such as the identity and details of the data controller, the duration for which personal data will be retained, or the right to lodge a complaint with the supervisory authority.

In light of the above, this Agency considers that the complained party has committed an infringement of the GDPR, specifically, of Article 13 of the GDPR by failing to provide the information required in the aforementioned article at the time the personal data of the complaining party was obtained.

IV

Classification

By virtue of the provisions of Article 58.2 of the GDPR, the Spanish Data Protection Agency, as the supervisory authority, has a set of corrective powers in the event of an infringement of the provisions of the GDPR.

Article 58.2 of the GDPR states the following:

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“2 Each supervisory authority shall have all of the following corrective powers:

(...)

“d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;”

“i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;”

Article 83.5.b) of the GDPR establishes that:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;”

In turn, Article 74.a) of the LOPDGDD under the heading “Minor Infringements” states:

“Minor infringements are considered to be those that are merely formal violations of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the data subject by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.”

V

Sanction

In relation to the general conditions for the imposition of administrative fines, Article 83 of the GDPR, in

its first paragraph, establishes the following:

“Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

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Furthermore, Article 83 of the GDPR in its second paragraph establishes that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

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2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In the present case, considering the severity of the infringement, especially regarding the consequences that its commission causes to the affected parties, the imposition of a fine is warranted, in addition to the adoption of measures.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

To ensure these principles, it is considered that the turnover is 977,771 euros.

Therefore, it is appropriate to graduate the sanction to be imposed in accordance with the following circumstances, contemplated in the aforementioned provisions:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damages suffered (Article 83.2 a) of the GDPR). In this case, the lack of information regarding data protection rights prevents their exercise by the affected parties and the knowledge of important aspects such as the right of access and erasure, or knowing the recipients of the data, or how long the controller will retain the data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR with respect to the infringement committed by violating the provisions of Article 13 of the GDPR allows for the establishment of an administrative fine of 5,000 euros.

VI

Adoption of measures

The controller is required to adopt appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may:

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“to order the person responsible or in charge of the processing to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...”.

This act establishes what the infringement committed is and the facts that give rise to this violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, this Agency requires the data controller to, within one month, provide evidence to the AEPD that they have incorporated the information provided for in Article 13 of the GDPR at the time of obtaining personal data from their clients or potential clients.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is noted that failure to comply with the measures imposed by this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on PALANCAMAR, S.L., with NIF B90375858, for an infringement of Article 13 of

the GDPR, classified under Article 83.5 of the GDPR, a fine of €5,000 (five thousand euros),
SECOND: TO ORDER PALANCAMAR, S.L., with NIF B90375858, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, provide evidence to the AEPD of the adoption of the measures established in the legal basis VI.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17 of

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December, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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